



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

HB 2429: short-term rentals; vacation rentals; occupancy

BLISS FLOOR AMENDMENT

1. Requires, rather than allows, a local government to adopt an ordinance requiring sex offender background checks on a vacation or short-term rental booking guest.
2. Includes a delayed effective date of January 1, 2027.

ADDITIONAL COW
BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2429
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-500.39, Arizona Revised Statutes, is amended
3 to read:

4 9-500.39. Limits on regulation of vacation rentals and
5 short-term rentals; state preemption; civil
6 penalties; transaction privilege tax license
7 suspension; definitions

8 A. A city or town may not prohibit vacation rentals or short-term
9 rentals.

10 B. A city or town may not restrict the use of or regulate vacation
11 rentals or short-term rentals based on their classification, use or
12 occupancy except as provided in this section. A city or town may regulate
13 vacation rentals or short-term rentals as follows:

14 1. To protect the public's health and safety, including rules and
15 regulations related to fire and building codes, health and sanitation,
16 transportation or traffic control and solid or hazardous waste and
17 pollution control, if the city or town demonstrates that the rule or
18 regulation is for the primary purpose of protecting the public's health
19 and safety.

20 2. To adopt and enforce use and zoning ordinances, including
21 ordinances related to noise, protection of welfare, property maintenance
22 and other nuisance issues, if the ordinance is applied in the same manner
23 as other property classified under sections 42-12003 and 42-12004.

24 3. To limit or prohibit the use of a vacation rental or short-term
25 rental for the purposes of housing sex offenders, operating or maintaining
26 a sober living home, selling illegal drugs, liquor control or pornography,
27 obscenity, nude or topless dancing and other adult-oriented businesses.

1 4. To require the owner of a vacation rental or short-term rental
2 to provide the city or town with emergency contact information for the
3 owner or the owner's designee who is responsible for responding to
4 complaints or emergencies in a timely manner in person if required by
5 public safety personnel, over the phone or by email at any time of day
6 before offering for rent or renting the vacation rental or short-term
7 rental. In addition to any other penalty imposed pursuant to this
8 section, the city or town may impose a civil penalty of up to \$1,000
9 against the owner for every thirty days the owner fails to provide contact
10 information as prescribed by this paragraph. The city or town shall
11 provide thirty days' notice to the owner before imposing the initial civil
12 penalty.

13 5. To require the owner of a vacation rental or short-term rental
14 to obtain and maintain a local regulatory permit or license. As a
15 condition of issuance of a permit or license, the application for the
16 permit or license may require an applicant to provide only the following:

17 (a) The name, address, telephone number and email address for the
18 owner or owner's agent.

19 (b) The address of the vacation rental or short-term rental.

20 (c) Proof of compliance with section 42-5005.

21 (d) Contact information required pursuant to paragraph 4 of this
22 subsection.

23 (e) Acknowledgment of an agreement to comply with all applicable
24 laws, regulations and ordinances.

25 (f) A fee not to exceed the actual cost of issuing the permit or
26 license or \$250, whichever is less.

27 6. To require, before offering a vacation rental or short-term
28 rental for rent for the first time, the owner or the owner's designee of a
29 vacation rental or short-term rental to notify all single-family
30 residential properties adjacent to and directly and diagonally across the
31 street from the vacation rental or short-term rental. Notice shall be
32 deemed sufficient in a multifamily residential building if given to
33 residents on the same building floor. A city or town may require
34 additional notification pursuant to this paragraph if the contact
35 information previously provided changes. Notification provided in
36 compliance with this paragraph shall include the permit or license number
37 if required by the city or town, the address of the vacation rental or
38 short-term rental and the information required pursuant to paragraph 4 of
39 this subsection. The owner or the owner's designee shall demonstrate
40 compliance with this paragraph by providing the city or town with an
41 attestation of notification compliance that consists of the following
42 information:

43 (a) The permit or license number of the vacation rental or
44 short-term rental, if required by the city or town.

45 (b) The address of each property notified.

46 (c) A description of the manner in which the owner or owner's
47 designee chose to provide notification to each property subject to
48 notification.

1 (d) The name and contact information of the person attesting to
2 compliance with this paragraph.

3 7. To require the owner or owner's designee of a vacation rental or
4 short-term rental to display the local regulatory permit number or license
5 number, if any, on each advertisement for a vacation rental or short-term
6 rental that the owner or owner's designee maintains. A city or town that
7 does not require a local regulatory permit or license may require the
8 owner or owner's designee of a vacation rental or short-term rental to
9 display the transaction privilege tax license number required by section
10 42-5042 on each advertisement for a vacation rental or short-term rental
11 that the owner or owner's designee maintains.

12 8. To require the vacation rental or short-term rental to maintain
13 liability insurance appropriate to cover the vacation rental or short-term
14 rental in the aggregate of at least \$500,000 or to advertise and offer
15 each vacation rental or short-term rental through an online lodging
16 marketplace that provides equal or greater coverage.

17 9. To require the owner of a vacation rental or short-term rental
18 to reside on the property if the property contains an accessory dwelling
19 unit and if a certificate of occupancy, certificate of completion or
20 similar final approval for the accessory dwelling unit was issued by the
21 municipality on or after September 14, 2024. This paragraph does not apply
22 to an owner of a vacation rental or short-term rental if the property
23 contains an accessory dwelling unit and the certificate of completion, the
24 certificate of occupancy or a similar final approval for the accessory
25 dwelling unit was issued on or before September 13, 2024.

26 10. TO LIMIT THE MAXIMUM OCCUPANCY FOR AN OVERNIGHT STAY IN A
27 VACATION RENTAL OR SHORT-TERM RENTAL THAT SHALL BE CALCULATED AS
28 FOLLOWING:

29 (a) THE MAXIMUM OCCUPANCY FOR OVERNIGHT STAYS FOR A VACATION RENTAL
30 OR SHORT-TERM RENTAL UNIT SHALL BE LIMITED TO TWO ADULTS PER SLEEPING AREA
31 PLUS UP TO TWO ADDITIONAL PERSONS, NOT INCLUDING MINORS.

32 (b) OCCUPANCY LIMITS FOR VACATION RENTAL OR SHORT-TERM RENTAL UNITS
33 SHALL ONLY APPLY TO GUESTS STAYING OVERNIGHT.

34 C. A city or town that requires a local regulatory permit or
35 license pursuant to this section shall issue or deny the permit or license
36 within seven business days of receipt of the information required by
37 subsection B, paragraph 5 of this section and otherwise in accordance with
38 section 9-835, except that a city or town may deny issuance of a permit or
39 license only for any of the following:

40 1. Failure to provide the information required by subsection B,
41 paragraph 5, subdivisions (a) through (e) of this section.

42 2. Failure to pay the required permit or license fee.

43 3. At the time of application the owner has a suspended permit or
44 license for the same vacation rental or short-term rental.

45 4. The applicant provides false information.

46 5. The owner or owner's designee of a vacation rental or short-term
47 rental is a registered sex offender or has been convicted of any felony

1 offense that resulted in death or serious physical injury or any felony
2 use of a deadly weapon within the past five years.

3 6. THE APPLICANT HAS UNPAID FINES OR CIVIL PENALTIES FOR VIOLATIONS
4 OF THE CITY'S OR TOWN'S VACATION RENTAL OR SHORT-TERM RENTAL ORDINANCE
5 ASSOCIATED WITH THAT PROPERTY.

6 D. A city or town that requires a local regulatory permit or
7 license pursuant to this section shall adopt an ordinance to allow the
8 city or town to initiate an administrative process to suspend a local
9 regulatory permit or license for a period of up to twelve months for the
10 following verified violations associated with a property:

11 1. Three verified violations within a ~~twelve-month~~
12 TWENTY-FOUR-MONTH period, not including any verified violation based on an
13 aesthetic, solid waste disposal or vehicle parking violation that is not
14 also a serious threat to public health and safety.

15 2. One verified violation that results in or constitutes any of the
16 following:

17 (a) A felony offense committed at or in the vicinity of a vacation
18 rental or short-term rental by the vacation rental or short-term rental
19 owner or owner's designee.

20 (b) A serious physical injury or wrongful death at or related to a
21 vacation rental or short-term rental resulting from the knowing,
22 intentional or reckless conduct of the vacation rental or short-term
23 rental owner or owner's designee.

24 (c) An owner or owner's designee knowingly or intentionally housing
25 a sex offender, allowing offenses related to adult-oriented businesses,
26 sexual offenses or prostitution, or operating or maintaining a sober
27 living home, in violation of a regulation or ordinance adopted pursuant to
28 subsection B, paragraph 3 of this section.

29 (d) An owner or owner's designee knowingly or intentionally
30 allowing the use of a vacation rental or short-term rental for a special
31 event that would otherwise require a permit or license pursuant to a city
32 or town ordinance or a state law or rule or for a retail, restaurant,
33 banquet space or other similar use.

34 (e) A VIOLATION OF A BUILDING CODE THAT PRESENTS A SERIOUS THREAT
35 TO PUBLIC HEALTH OR SAFETY THAT IS RELATED TO CONSTRUCTING, MODIFYING OR
36 ALTERING A VACATION RENTAL OR SHORT-TERM RENTAL WITHOUT A REQUIRED
37 BUILDING PERMIT OR FAILING TO REMEDY A DOCUMENTED VIOLATION OF AN ADOPTED
38 BUILDING OR FIRE CODE THAT PRESENTS A SERIOUS AND IMMEDIATE THREAT TO
39 PUBLIC HEALTH OR SAFETY.

40 3. Notwithstanding paragraphs 1 and 2 of this subsection, any
41 attempted or completed felony offense, arising from the occupancy or use
42 of a vacation rental or short-term rental, that results in a death, or
43 actual or attempted serious physical injury, shall be grounds for judicial
44 relief in the form of a suspension of the property's use as a vacation
45 rental or short-term rental for a period of time that shall not exceed
46 twelve months.

47 E. A city or town that requires A LOCAL REGULATORY PERMIT OR
48 LICENSE PURSUANT TO THIS SECTION ~~[MAY]~~ [SHALL] ADOPT AN ORDINANCE

1 REQUIRING sex offender background checks on a vacation rental or
2 short-term rental BOOKING guest AND shall waive the requirement if an
3 online lodging marketplace performs a sex offender background check of the
4 booking guest.

5 F. Notwithstanding any other law, a city or town may impose a civil
6 penalty of the following amounts against an owner of a vacation rental or
7 short-term rental if the owner receives one or more verified violations
8 related to the same vacation rental or short-term rental property within
9 the same twelve-month period:

10 1. Up to \$500 or up to an amount equal to one night's rent for the
11 vacation rental or short-term rental as advertised, whichever is greater,
12 for the first verified violation.

13 2. Up to \$1,000 or up to an amount equal to two nights' rent for
14 the vacation rental or short-term rental as advertised, whichever is
15 greater, for the second verified violation.

16 3. Up to \$3,500 or up to an amount equal to three nights' rent for
17 the vacation rental or short-term rental as advertised, whichever is
18 greater, for a third and any subsequent verified violation.

19 G. A vacation rental or short-term rental that fails to apply for a
20 local regulatory permit or license in accordance with subsection B,
21 paragraph 5 of this section, within thirty days of the local regulatory
22 permit or license application process being made available by the city or
23 town issuing such permits or licenses, must cease operations. In addition
24 to any civil penalties imposed pursuant to subsection F of this section, a
25 city or town may impose a civil penalty of up to \$1,000 per month against
26 the owner if the owner or owner's designee fails to apply for a regulatory
27 permit or license within thirty days after receiving written notice of the
28 failure to comply with subsection B, paragraph 5 of this section.

29 H. If multiple verified violations arise out of the same response
30 to an incident at a vacation rental or short-term rental, those verified
31 violations are considered one verified violation for the purpose of
32 assessing civil penalties or suspending the regulatory permit or license
33 of the owner pursuant to this section.

34 I. If the owner of a vacation rental or short-term rental has
35 provided contact information to a city or town pursuant to subsection B,
36 paragraph 4 of this section and if the city or town issues a citation for
37 a violation of the city's or town's applicable laws, regulations or
38 ordinances or a state law that occurred on the owner's vacation rental or
39 short-term rental property, the city or town shall make a reasonable
40 attempt to notify the owner or the owner's designee of the citation within
41 seven business days after the citation is issued using the contact
42 information provided pursuant to subsection B, paragraph 4 of this
43 section. If the owner of a vacation rental or short-term rental has not
44 provided contact information pursuant to subsection B, paragraph 4 of this
45 section, the city or town is not required to provide such notice.

46 J. This section does not exempt an owner of a residential rental
47 property, as defined in section 33-1901, from maintaining with the

1 assessor of the county in which the property is located information
2 required under title 33, chapter 17, article 1.

3 K. A vacation rental or short-term rental may not be used for
4 nonresidential uses, including for a special event that would otherwise
5 require a permit or license pursuant to a city or town ordinance or a
6 state law or rule or for a retail, restaurant, banquet space or other
7 similar use.

8 L. For the purposes of this section:

9 1. "Accessory dwelling unit" has the same meaning prescribed in
10 section 9-461.18.

11 2. "Online lodging marketplace" has the same meaning prescribed in
12 section 42-5076.

13 3. "Transient" has the same meaning prescribed in section 42-5070.

14 4. "Vacation rental" or "short-term rental":

15 (a) Means any individually or collectively owned single-family or
16 one-to-four-family house or dwelling unit or any unit or group of units in
17 a condominium or cooperative that is also a transient public lodging
18 establishment or owner-occupied residential home offered for transient use
19 if the accommodations are not classified for property taxation under
20 section 42-12001.

21 (b) Does not include a unit that is used for any nonresidential
22 use, including retail, restaurant, banquet space, event center or another
23 similar use.

24 5. "Verified violation" means a finding of guilt or civil
25 responsibility for violating any state law or local ordinance relating to
26 a purpose prescribed in subsection B, D, F or K of this section that has
27 been finally adjudicated.

28 Sec. 2. Section 11-269.17, Arizona Revised Statutes, is amended to
29 read:

30 11-269.17. Limits on regulation of vacation rentals and
31 short-term rentals; state preemption; civil
32 penalties; transaction privilege tax license
33 suspension; definitions

34 A. A county may not prohibit vacation rentals or short-term
35 rentals.

36 B. A county may not restrict the use of or regulate vacation
37 rentals or short-term rentals based on their classification, use or
38 occupancy except as provided in this section. A county may regulate
39 vacation rentals or short-term rentals within the unincorporated areas of
40 the county as follows:

41 1. To protect the public's health and safety, including rules and
42 regulations related to fire and building codes, health and sanitation,
43 transportation or traffic control and solid or hazardous waste and
44 pollution control, if the county demonstrates that the rule or regulation
45 is for the primary purpose of protecting the public's health and safety.

46 2. To adopt and enforce use and zoning ordinances, including
47 ordinances related to noise, protection of welfare, property maintenance

1 and other nuisance issues, if the ordinance is applied in the same manner
2 as other property classified under sections 42-12003 and 42-12004.

3 3. To limit or prohibit the use of a vacation rental or short-term
4 rental for the purposes of housing sex offenders, operating or maintaining
5 a sober living home, selling illegal drugs, liquor control or pornography,
6 obscenity, nude or topless dancing and other adult-oriented businesses.

7 4. To require the owner of a vacation rental or short-term rental
8 to provide the county with emergency contact information for the owner or
9 the owner's designee who is responsible for responding to complaints or
10 emergencies in a timely manner in person if required by public safety
11 personnel, over the phone or by email at any time of day before offering
12 for rent or renting the vacation rental or short-term rental. In addition
13 to any other penalty imposed pursuant to this section, the county may
14 impose a civil penalty of up to \$1,000 against the owner for every thirty
15 days the owner fails to provide contact information as prescribed by this
16 paragraph. The county shall provide thirty days' notice to the owner
17 before imposing the initial civil penalty.

18 5. To require the owner of a vacation rental or short-term rental
19 to obtain and maintain a local regulatory permit or license. As a
20 condition of issuance of a permit or license, the application for the
21 permit or license may require an applicant to provide only the following:

22 (a) The name, address, telephone number and email address for the
23 owner or owner's agent.

24 (b) The address of the vacation rental or short-term rental.

25 (c) Proof of compliance with section 42-5005.

26 (d) Contact information required pursuant to paragraph 4 of this
27 subsection.

28 (e) Acknowledgment of an agreement to comply with all applicable
29 laws, regulations and ordinances.

30 (f) A fee not to exceed the actual cost of issuing the permit or
31 license or \$250, whichever is less.

32 6. To require, before offering a vacation rental or short-term
33 rental for rent for the first time, the owner or the owner's designee of a
34 vacation rental or short-term rental to notify all single-family
35 residential properties adjacent to and directly and diagonally across the
36 street from the vacation rental or short-term rental. Notice shall be
37 deemed sufficient in a multifamily residential building if given to
38 residents on the same building floor. A county may require additional
39 notification pursuant to this paragraph if the contact information
40 previously provided changes. Notification provided in compliance with
41 this paragraph shall include the permit or license number if required by
42 the county, the address of the vacation rental or short-term rental and
43 the information required pursuant to paragraph 4 of this subsection. The
44 owner or the owner's designee shall demonstrate compliance with this
45 paragraph by providing the county with an attestation of notification
46 compliance that consists of the following information:

47 (a) The permit or license number of the vacation rental or
48 short-term rental, if required by the county.

1 (b) The address of each property notified.

2 (c) A description of the manner in which the owner or owner's
3 designee chose to provide notification to each property subject to
4 notification.

5 (d) The name and contact information of the person attesting to
6 compliance with this paragraph.

7 7. To require the owner or owner's designee of a vacation rental or
8 short-term rental to display the local regulatory permit number or license
9 number, if any, on each advertisement for a vacation rental or short-term
10 rental that the owner or owner's designee maintains. A county that does
11 not require a local regulatory permit or license may require the owner or
12 owner's designee of a vacation rental or short-term rental to display the
13 transaction privilege tax license number required by section 42-5042 on
14 each advertisement for a vacation rental or short-term rental that the
15 owner or owner's designee maintains.

16 8. To require the vacation rental or short-term rental to maintain
17 liability insurance appropriate to cover the vacation rental or short-term
18 rental in the aggregate of at least \$500,000 or to advertise and offer
19 each vacation rental or short-term rental through an online lodging
20 marketplace that provides equal or greater coverage.

21 9. To require the owner of a vacation rental or short-term rental
22 to reside on the property if the property contains an accessory dwelling
23 unit and if a certificate of occupancy, certificate of completion or
24 similar final approval for the accessory dwelling unit was issued by the
25 county on or after September 14, 2024. This paragraph does not apply to
26 an owner of a vacation rental or short-term rental if the property
27 contains an accessory dwelling unit and the certificate of completion, the
28 certificate of occupancy or a similar final approval for the accessory
29 dwelling unit was issued on or before September 13, 2024.

30 10. TO LIMIT THE MAXIMUM OCCUPANCY FOR AN OVERNIGHT STAY IN A
31 VACATION RENTAL OR SHORT-TERM RENTAL THAT SHALL BE CALCULATED AS
32 FOLLOWING:

33 (a) THE MAXIMUM OCCUPANCY FOR OVERNIGHT STAYS FOR A VACATION RENTAL
34 OR SHORT-TERM RENTAL UNIT SHALL BE LIMITED TO TWO ADULTS PER SLEEPING AREA
35 PLUS UP TO TWO ADDITIONAL PERSONS, NOT INCLUDING MINORS.

36 (b) OCCUPANCY LIMITS FOR UNITS SHALL ONLY APPLY TO GUESTS STAYING
37 OVERNIGHT.

38 C. A county that requires a local regulatory permit or license
39 pursuant to this section shall issue or deny the permit or license within
40 seven business days of receipt of the information required by subsection
41 B, paragraph 5 of this section and otherwise in accordance with section
42 11-1602, except that a county may deny issuance of a permit or license
43 only for any of the following:

44 1. Failure to provide the information required by subsection B,
45 paragraph 5, subdivisions (a) through (e) of this section.

46 2. Failure to pay the required permit or license fee.

47 3. At the time of application the owner has a suspended permit or
48 license for the same vacation rental or short-term rental.

1 4. The applicant provides false information.

2 5. The owner or owner's designee of a vacation rental or short-term
3 rental is a registered sex offender or has been convicted of any felony
4 offense that results in death or serious physical injury or any felony use
5 of a deadly weapon within the past five years.

6 D. A county that requires a local regulatory permit or license
7 pursuant to this section shall adopt an ordinance to allow the county to
8 initiate an administrative process to suspend a local regulatory permit or
9 license for a period of up to twelve months for the following verified
10 violations associated with a property:

11 1. Three verified violations within a ~~twelve-month~~
12 TWENTY-FOUR-MONTH period, not including any verified violation based on an
13 aesthetic, solid waste disposal or vehicle parking violation that is not
14 also a serious threat to public health or safety.

15 2. One verified violation that results in or constitutes any of the
16 following:

17 (a) A felony offense committed at or in the vicinity of a vacation
18 rental or short-term rental by the vacation rental or short-term rental
19 owner or owner's designee.

20 (b) A serious physical injury or wrongful death at or related to a
21 vacation rental or short-term rental resulting from the knowing,
22 intentional or reckless conduct of the vacation rental or short-term
23 rental owner or owner's designee.

24 (c) An owner or owner's designee knowingly or intentionally housing
25 a sex offender, allowing offenses related to adult-oriented businesses,
26 sexual offenses or prostitution, or operating or maintaining a sober
27 living home, in violation of regulation or ordinance adopted pursuant to
28 subsection B, paragraph 3 of this section.

29 (d) An owner or owner's designee knowingly or intentionally
30 allowing the use of a vacation rental or short-term rental for a special
31 event that would otherwise require a permit or license pursuant to a
32 county ordinance or a state law or rule or for a retail, restaurant,
33 banquet space or other similar use.

34 (e) A VIOLATION OF A BUILDING CODE THAT PRESENTS A SERIOUS THREAT
35 TO PUBLIC HEALTH OR SAFETY THAT IS RELATED TO CONSTRUCTING, MODIFYING OR
36 ALTERING A VACATION RENTAL OR SHORT-TERM RENTAL WITHOUT A REQUIRED
37 BUILDING PERMIT OR FAILING TO REMEDY A DOCUMENTED VIOLATION OF AN ADOPTED
38 BUILDING OR FIRE CODE THAT PRESENTS A SERIOUS AND IMMEDIATE THREAT TO
39 PUBLIC HEALTH OR SAFETY.

40 3. Notwithstanding paragraphs 1 and 2 of this subsection, any
41 attempted or completed felony offense, arising from the occupancy or use
42 of a vacation rental or short-term rental, that results in a death, or
43 actual or attempted serious physical injury, shall be grounds for judicial
44 relief in the form of a suspension of the property's use as a vacation
45 rental or short-term rental for a period of time that shall not exceed
46 twelve months.

47 E. A county that requires A LOCAL REGULATORY PERMIT OR LICENSE
48 PURSUANT TO THIS SECTION [MAY] [SHALL] ADOPT AN ORDINANCE REQUIRING sex

1 offender background checks on a vacation rental or short-term rental
2 **BOOKING** guest **AND** shall waive the requirement if an online lodging
3 marketplace performs a sex offender background check of the booking guest.

4 F. Notwithstanding any other law, a county may impose a civil
5 penalty of the following amounts against an owner of a vacation rental or
6 short-term rental if the owner receives one or more verified violations
7 related to the same vacation rental or short-term rental property within
8 the same twelve-month period:

9 1. Up to \$500 or up to an amount equal to one night's rent for the
10 vacation rental or short-term rental as advertised, whichever is greater,
11 for the first verified violation.

12 2. Up to \$1,000 or up to an amount equal to two nights' rent for
13 the vacation rental or short-term rental as advertised, whichever is
14 greater, for the second verified violation.

15 3. Up to \$3,500 or up to an amount equal to three nights' rent for
16 the vacation rental or short-term rental as advertised, whichever is
17 greater, for a third and any subsequent verified violation.

18 G. A vacation rental or short-term rental that fails to apply for a
19 local regulatory permit or license in accordance with subsection B,
20 paragraph 5 of this section, within thirty days of the local regulatory
21 permit or license application process being made available by the county
22 issuing such permits or licenses, must cease operations. In addition to
23 any civil penalties imposed pursuant to subsection F of this section, a
24 county may impose a civil penalty of up to \$1,000 per month against the
25 owner if the owner or owner's designee fails to apply for a regulatory
26 permit or license within thirty days after receiving written notice of the
27 failure to comply with subsection B, paragraph 5 of this section.

28 H. If multiple verified violations arise out of the same response
29 to an incident at a vacation rental or short-term rental, those verified
30 violations are considered one verified violation for the purpose of
31 assessing civil penalties or suspending the regulatory permit or license
32 of the owner pursuant to this section.

33 I. If the owner of a vacation rental or short-term rental has
34 provided contact information to a county pursuant to subsection B,
35 paragraph 4 of this section and if the county issues a citation for a
36 violation of the county's applicable laws, regulations or ordinances or a
37 state law that occurred on the owner's vacation rental or short-term
38 rental property, the county shall make a reasonable attempt to notify the
39 owner or the owner's designee of the citation within seven business days
40 after the citation is issued using the contact information provided
41 pursuant to subsection B, paragraph 4 of this section. If the owner of a
42 vacation rental or short-term rental has not provided contact information
43 pursuant to subsection B, paragraph 4 of this section, the county is not
44 required to provide such notice.

45 J. This section does not exempt an owner of a residential rental
46 property, as defined in section 33-1901, from maintaining with the
47 assessor of the county in which the property is located information
48 required under title 33, chapter 17, article 1.

1 K. A vacation rental or short-term rental may not be used for
2 nonresidential uses, including for a special event that would otherwise
3 require a permit or license pursuant to a county ordinance or a state law
4 or rule or for a retail, restaurant, banquet space or other similar use.

5 L. For the purposes of this section:

6 1. "Accessory dwelling unit" has the same meaning prescribed in
7 section 11-810.01.

8 2. "Online lodging marketplace" has the same meaning prescribed in
9 section 42-5076.

10 3. "Transient" has the same meaning prescribed in section 42-5070.

11 4. "Vacation rental" or "short-term rental":

12 (a) Means any individually or collectively owned single-family or
13 one-to-four-family house or dwelling unit or any unit or group of units in
14 a condominium or cooperative that is also a transient public lodging
15 establishment or owner-occupied residential home offered for transient use
16 if the accommodations are not classified for property taxation under
17 section 42-12001.

18 (b) Does not include a unit that is used for any nonresidential
19 use, including retail, restaurant, banquet space, event center or another
20 similar use.

21 5. "Verified violation" means a finding of guilt or civil
22 responsibility for violating any state law or local ordinance relating to
23 a purpose prescribed in subsection B, D, F or K of this section that has
24 been finally adjudicated.

25 <<Sec. 3. Effective date
26 [Sections 9-500.39 and 11-269.17, Arizona Revised Statutes, as
27 amended by this act, are effective from and after December 31, 2026.]>>

28 Enroll and engross to conform

29 Amend title to conform

SELINA BLISS

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